

ARCHIVED CONTENT

Information released online from January 20, 2009 to January 20, 2017.

NOTE: Content in this archive site is **NOT UPDATED**, and links may not function. External links to other Internet sites should not be construed as an endorsement of the views contained therein.

[Go to the current State.gov website for up-to-date information. \(http://www.state.gov/\)](http://www.state.gov/)

U.S. Department of State Diplomacy in Action

Yemen

Country Reports on Human Rights Practices
Bureau of Democracy, Human Rights, and Labor
1999
February 23, 2000

The Republic of Yemen, comprising the former (northern) Yemen Arab Republic (YAR) and (southern) People's Democratic Republic of Yemen (PDRY), was proclaimed in 1990. Following a brief but bloody civil war in mid-1994, the country was reunified under the Sana'a-based government. Ali Abdullah Saleh is the President and leader of the General People's Congress (GPC). He was elected by the legislature to a 5-year term in 1994, and was elected to another 5-year term in the country's first nation-wide direct presidential election in September, winning 96.3 percent of the vote. The Constitution provides that the President be elected by popular vote from at least two candidates endorsed by Parliament, and the election was generally free and fair; however, there were some problems, including the lack of a credible voter registration list. In addition the President was not opposed by a truly competitive candidate because the candidate selected by the leftist opposition did not receive the minimum number of votes required to run from the GPC-dominated Parliament (the other opposition party chose not to run its own candidate, despite its seats in Parliament). The President's sole opponent was a member of the GPC.

The first Parliament elected by universal adult suffrage was convened in 1993. Parliamentary elections were held again in 1997, with the Yemeni Socialist Party (YSP), formerly the main party of the PDRY and a previous coalition partner of the GPC, leading an opposition boycott. The GPC won an absolute majority in the 1997 Parliament, with Islaah the only other major party represented. International observers judged the elections as reasonably free and fair, while noting some problems with the voting. The Parliament is not yet an effective counterweight to executive authority, although it increasingly demonstrates independence from the Government. Real political power rests with the executive branch, particularly the President. The judiciary is nominally independent, but is weak and severely hampered by corruption, executive branch interference, and the frequent failure of the authorities to enforce judgments.

The primary state security apparatus is the Political Security Organization (PSO), which reports directly to the President. It is independent of the Ministry of Interior. The Criminal Investigative Department (CID) of the police conducts most criminal investigations and makes most arrests. The Central Security Organization (CSO), a part of the Ministry of Interior, maintains a paramilitary force. The civilian authorities do not maintain effective control of the security forces. Members of the security forces, particularly the PSO, committed numerous, serious human rights abuses.

Yemen is a very poor country, and over 40 percent of the population live in poverty. Its embryonic market-based economy, despite a major economic reform program, remains impeded by excessive government interference and endemic corruption. Its annual per capita gross national product (GNP) fell from \$325 in 1997 to \$260 in 1998, but rose to \$275 in 1999.

Agriculture accounts for approximately 22 percent of GNP, industry for approximately 27 percent, and services for approximately 51 percent. Oil is the primary source of foreign exchange. Other exports include fish, agricultural products, cotton, and coffee. Remittances from citizens working abroad (primarily in Saudi Arabia) are also important. Remittances were reduced sharply after Saudi Arabia and other Gulf States expelled up to 850,000 Yemeni workers during the Gulf War because of the Government's lack of support for the U.N. coalition. The Gulf states also suspended most assistance programs, and much Western aid was reduced. Foreign aid has begun to reemerge as an importance source of income. The unemployment rate is estimated at 40 percent, and is highest in the southern governorates, where, prior to unity, most adults were employed by the PDRY Government.

The Government's human rights record continues to be poor. There are significant limitations on citizens' right to change their government. There were instances of extrajudicial killing by some members of the security forces. Members of the security forces tortured and otherwise abused persons, and continued to arrest and to detain citizens arbitrarily, especially oppositionists in the south and other persons regarded as "secessionists." Prison conditions are poor and some detainees were held in private prisons not authorized by the Government. PSO officers have broad discretion over perceived national security issues. Despite constitutional constraints, they routinely monitor citizens' activities and search their homes, detain citizens for questioning, and mistreat detainees. In fact security forces sometimes countermand orders from the President and the Interior Ministry. The Government failed to hold members of the security forces accountable for abuses, although it investigated three security officers, subsequently convicted them of torturing a prisoner to death, fired them from their positions, and sentenced them to prison. Prolonged pretrial detention is a serious problem, and judicial corruption, inefficiency, and executive interference undermine due process. The Government continued to implement a comprehensive, long-term program for judicial reform, but its effect is not yet clear. The Constitution limits freedom of speech and of the press, and the Government frequently harassed, intimidated, and detained journalists. Journalists practice self-censorship. The Government at times limits freedom of assembly. The Government imposes some restrictions on freedom of religion. There were some limits on freedom of movement. Violence and discrimination against women are problems. Female genital mutilation is practiced on a limited scale, primarily along the coastal areas of the Red Sea. Although the practice is discouraged publicly, the authorities do not prohibit it. Discrimination against the disabled and racial and ethnic minorities, and to a lesser extent, religious minorities, is a problem. The Government influences labor unions. Child labor is a problem.

However, the Government continued to take some steps to address human rights problems. These steps included holding of the country's first direct presidential election, implementing limited political and legal reforms, displaying official receptiveness to and support for donor-funded democracy and human rights programs, and convicting three security officials for human rights abuses. In June the Government hosted the first Emerging Democracies Forum, a major international conference of 16 democratizing countries.

At the invitation of the authorities, delegations from the U.N. Human Rights Commission (UNHRC) and Amnesty International (AI) visited Yemen in 1998 to observe the human rights situation and make recommendations. One NGO, Penal Reform International (PRI), conducted a series of prison reform-related events from September 1998 to February. The Government continued to implement a comprehensive, long-term program for judicial reform.

A campaign of bombings--the devices sometimes were little more than noise bombs--continued throughout the year, particularly in the southern governorates, although at a far lower rate than in previous years. Observers attribute the bombings to tribal disputes, religious extremists, and antigovernment political groups based in the country and abroad.

RESPECT FOR HUMAN RIGHTS

Section 1. Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

Security forces committed a number of extrajudicial killings. There were no reports that security forces killed or injured persons at checkpoints during the year, as had been reported in previous years.

In March forces from the paramilitary police Central Security Unit (CSU) under the command of Ahmed Nasser al-Dahiri used excessive force when they intervened to settle a land dispute in the village of Sa'eed in Al-Baida governorate. The incident began after local police intervened on behalf of one party and a police officer was killed. The police claim that the officer was killed by villagers; the villagers claim that he was a victim of the police's random firing into the crowd. Later that day, heavily armed CSU reinforcements arrived and occupied the village for 8 days (see Section 1.c.).

There was credible evidence that security forces killed a prisoner in detention in late 1997 or early 1998. Wadia al-Shaibani, a 22-year-old arrested in connection with the July 1997 bombings in Aden, apparently died after suffering a beating at the Soleyban police facility in Aden. Government authorities declined to investigate; they claimed that al-Shaibani committed suicide. The 1996 case of a YSP activist who died in police custody remained unresolved. The youth had been arrested following his participation in a peaceful demonstration in Mukallah. No member of the security forces has been charged in connection with his death. The Human Rights Committee of the Consultative Council (an advisory board to the President) in 1998 investigated the death of Wadia al-Shaibani; however, it was unable to persuade the authorities to investigate the death or to bring charges against security officials.

In July a court in Tawila in Al-Mahweet governorate convicted the town's security chief and two police officers of first-degree murder for torturing to death a teenager taken into their custody on theft charges in March. All three officials were fired. The security chief was sentenced to 10 years in jail and fined \$19,000 (YR 93,000,000) in compensation to the victim's family. The two police officers each were sentenced to 5 years in jail.

In June 1998, the President established a committee to study the phenomenon of revenge killings and to make recommendations on how to combat that problem. There was no news on the committee's work or its findings at year's end.

Tribal violence resulted in a number of killings and other abuses, and the Government's ability to control tribal elements remained limited. In addition tensions between the Government and various tribes periodically escalate into violent confrontations (see Section 5).

Persons continued to be killed and injured in unexplained bombings and shootings that occurred during the year. In most cases, it was impossible to determine who was responsible for such acts or why they occurred, and there were no claims of responsibility. The Government accused southern oppositionists of perpetrating some incidents, but the opposition denied any involvement. Some cases appeared to have criminal, religious, or political motives; others appeared to be cases of tribal revenge or land disputes. In August four persons were killed in a massive explosion, which destroyed Sana'a's largest supermarket.

On December 28, 1998, a group of 16 western tourists was kidnaped by terrorists in Abyan governorate near Mudiyah. The next day, government forces surrounded the area and attempted a rescue operation. Four of the hostages and three of the terrorists were killed. There were varying reports as to whether the government forces inadvertently killed any of the hostages in the crossfire. However, at least two apparently were shot deliberately by the kidnapers. The Government has stated that its decision to intervene was based on its belief that the hostages' lives were in immediate danger. The trial of the four surviving terrorists including Aden-Abyan Islamic Army (AAIA) leader Zein Al-Abidine Al-Mihdar (also known as Abu Hassan) began in January, and in May they were found guilty. Abu Hassan, who during his trial publicly and repeatedly admitted to all charges against him, a second Yemeni, Abdallah Al-Jundaydi, and a Tunisian were sentenced to death; the remaining defendant was sentenced to 20 year's imprisonment. The Tunisian's sentence was commuted to 20 years at the first appellate review, and the Supreme Court in October commuted Al-Jundaydi's sentence to 20 years as well. However, Abu Hassan's death sentence was upheld by the Supreme Court in October and approved by President Saleh. He was executed by firing squad on October 17. There were no allegations of lack of due process in Abu Hassan's trial or during the subsequent appeal process. The trial of seven additional AAIA members on terrorism charges began in October, but it had not concluded by year's end (see Section 1.e.).

b. Disappearance

Members of the security forces continue to arrest and detain citizens for varying periods of time without charge or notification to their families. Many detainees are associated with the YSP or other opposition parties and are accused of being "secessionists." Most such disappearances are temporary, and detainees typically are released within weeks or months.

Following an April 1998 opposition demonstration in which two persons were killed, the authorities rounded up and detained a large number of demonstrators. The security forces released 14 of the detainees late in the next month. Other demonstrators were released soon thereafter. Later in 1998, the Hadramaut primary court announced that a trial would begin in the case of several oppositionists for their role in the violence, including Hassan Ba Oum, the leader of the YSP in Hadramaut governorate and head of the opposition coordination council; however, no trial was held. Ba Oum's whereabouts were unknown after the April 1998 demonstrations, and there were reports that he had disappeared during police custody. These reports turned out to be false. Ba Oum remained in seclusion for most of the year, communicating periodically with the press. In October he turned himself in to the Mukallah prosecutor's office. He was detained for questioning and released 5 days later without charges being placed against him.

In 1998 at the invitation of authorities, delegations from the UNHRC and AI visited the country to investigate the whereabouts of persons who have "disappeared" in custody since unification. In 1997 the Government had promised AI that it would look into 27 cases of persons who died after they reportedly "disappeared" while in government custody during the violence associated with the civil war in 1994. In its follow-up report issued in July, AI criticized the Government for not keeping this promise. The Government claims that it responded to AI and passed the results of its investigations to the UNHRC, but that the information AI provided was inadequate for effective investigation and conclusive action. AI has received no credible reports of disappearances in the last 5 years. Both the U.N. Committee on Disappearances and AI also continue to allege that there were hundreds of unresolved disappearances dating from the pre-union period in the former PDRY, particularly from its 1986 civil war. The Government asserts that it cannot be held responsible for cases that took place within the former PDRY prior to unity; however, it has set up a computer database in the Ministry of Foreign Relations to track disappearances, including those dating from the preunity period.

Some tribes seek to bring their political and economic concerns to the attention of the Government by kidnaping and holding hostages. Victims include 21 foreign businessmen, diplomats, and tourists (12 men, 7 women, and 2 children), as well as much higher number citizens. The legal magazine al-Qistas, in a 1998 study that it conducted on 159 kidnapings perpetrated since unity, found that Sana'a, Marib, and Shabwa are the areas where a foreigner is most likely to be kidnaped. Kidnaping victims rarely are injured, and the authorities generally have been successful in obtaining the negotiated release of foreign hostages. However, kidnapings continue in part because the judiciary fails to impose sentences against accused kidnapers. Moreover, some families linked to kidnapings also are politically or tribally prominent or have links with such tribes. In most cases the kidnapings are settled out of court, with no suspects facing trial.

In August 1998, the Government issued by presidential decree a law that stipulated severe punishments up to and including capital punishment for persons involved in kidnaping, murder, and banditry. Persons charged with helping a foreign state or gang in a kidnaping or theft by force face sentences of 10 to 15 years, subject to doubling if the instigators are military officers or otherwise employed by the state. The law was implemented for the first time in Taiz in late 1998, when a man was tried under the new law, convicted, and executed.

In October the Government announced the establishment of a special court in Sana'a and a Special Prosecutor to investigate and quickly try those accused of kidnaping foreigners, sabotaging oil pipelines, "carjacking," and other acts of sabotage.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution is ambiguous on its prohibition of cruel or inhuman punishment; however, members of the security forces tortured and otherwise abused persons in detention. Arresting authorities are known to use force during interrogations, especially against those arrested for violent crimes. Detainees sometimes are confined in leg-irons and shackles, despite the passage of a law in 1998 outlawing this practice.

The Government has acknowledged publicly that torture takes place but has claimed that the use of torture is not government policy. Nevertheless, the Government has not taken effective steps to end the practice or to punish those who commit such abuses. A government prosecutor has cited illiteracy and lack of training among police and security officials as reasons for the persistence of the use of undue force in prisons.

In April Sana'a municipality police arrested Naji Saleh Al-Khowlani for his alleged involvement in a car theft ring. Al-Khowlani was held for 2 months, during which time he reportedly was tortured during regular nightly interrogation sessions in which prison officials would attempt to elicit a confession and extract information by burning him with a cigarette lighter. A medical report documented burn marks and other injuries on Al-Khowlani's body.

In July a court convicted three security force officials of murder for torturing a teenager to death (see Section 1.a.).

The eight Britons and two Algerians arrested in December 1998 for possession of illegal weapons and explosives and conspiring to commit terrorist acts in Aden claimed during their trial during the year that they had been tortured; two of them claimed that they had been abused sexually (see Section 1.e.).

The trial of seven additional AAIA members on terrorism charges began in October. Two of the defendants are being tried in absentia, one has admitted to some of the charges against him, and the remaining four pled not guilty and claim that the prosecution coerced and tortured them into making self-incriminating statements and confessions (see Section 1.e.). The judge issued a ruling prohibiting the publication of details about the trial.

In 1998 several individuals on trial in Aden in connection with a series of bombings in 1997 testified publicly that they had been tortured. One defendant claimed that he had been raped while in custody. There is credible evidence that one other person arrested in connection with the same bombings died as a result of beatings inflicted by security officials. According to eyewitnesses who also claimed to have been tortured, Wadia al-Shaibani was first beaten in a criminal security office in Aden, then transferred to the Soleyban police facility, where he was tortured to death (see Section 1.a.). No charges have been filed.

In a related case in 1998 in which 31 persons were accused of conspiracy in Mahra governorate in 1997, several of the suspects claimed that they had confessed only because they had been tortured. Defense attorneys asserted the existence of films that would prove their clients' allegations that they had been beaten, and asked the judge to view the films. The judge denied this request. In late October 1998, the court sentenced three of the defendants to death, found one innocent, and sentenced the others to jail for periods ranging from 6 to 10 years (see Section 1.e.).

Some cases of torture by security officials have been referred to the courts. In July three officials were convicted of torturing a teenager to death (see Section 1.a.). In November 1998, three officers from the Criminal Investigation Department of the Interior Ministry were arrested, tried, and convicted of torturing Khaled Abdul-Bari al-Qadhi, a witness in a family dispute case. One of the officers, Hisham al-Ghazali, head of the Interior Ministry's antiterrorism unit, had been implicated in the abuse of defendants in the 1997 Aden bombing case. However, in January President Saleh commuted the sentences of all three officers.

Police used excessive force in March when they intervened to settle a land dispute in the village of Sa'eed in Al-Baida governorate. Heavily armed CSU forces occupied the village for 8 days. During this period, they evicted residents from their homes, looted villagers' property and livestock, vandalized the village school and mosque, and filled a small pond that was the village's only source of drinking water with rocks. Many villagers, including the other party to the land dispute, fled into the mountains. CSU officers detained eight villagers until residents that they considered fugitives from justice surrendered.

Police also used excessive force and abused their authority in other instances. In May two soldiers were killed and several armed citizens were injured in 2 days of intense fighting between security personnel and citizens in the village of Quradah in Taiz governorate. The confrontation began when armed villagers attempted forcibly to prevent the carrying out of orders

reportedly given by Colonel Abdullah Al-Qadhi, commander of the Taiz military headquarters, that well water in Quradah be shared with citizens in the neighboring village of Al-Marzah. Al-Qadhi had no jurisdiction over water allocation, which is a civil matter. Security personnel used artillery, bazookas, and heavy battle equipment to put down the armed protest.

The Constitution may be interpreted as permitting amputations in accordance with Shari'a (Islamic law). There have been no reports of amputations since 1991. However, a small number of persons who have been found guilty of theft and sentenced to amputation remain in jail awaiting the implementation of their sentences. The Shari'a-based law permits physical punishment such as flogging for minor crimes (for example, the penalty for the consumption of alcohol is 80 lashes). The law also provides for the ritual display in public of the bodies of executed criminals. The ostensible purpose of this practice is to demonstrate to the families of victims that justice has been served and to prevent blood feuds between tribes. In August the bodies of two men executed for raping and then murdering an 11-year-old boy were displayed publicly in Dhamar governorate.

Prison conditions are poor and do not meet internationally recognized minimum standards. Prisons are overcrowded, sanitary conditions are poor, and food and health care are inadequate. Inmates depend on relatives for food and medicine. Many inmates lack mattresses or bedding. Prison authorities often exact money from prisoners and refuse to release prisoners until family members pay a bribe. Tribal leaders misuse the prison system by placing "problem" tribesmen in jail, either to punish them for noncriminal indiscretions or to protect them from retaliation or violence motivated by revenge. Refugees, persons with mental problems, and illegal immigrants sometimes are arrested without charge and placed in prisons alongside criminals.

Conditions are equally poor in women's prisons, where children are likely to be incarcerated along with their mothers. By custom and preference, babies born in prison generally remain in prison with their mothers. The law requires male members of the families of female prisoners to arrange their release; however, female prisoners regularly are held in jail past the expiration of their sentences because their male relatives refuse to authorize their release due to the shame associated with their alleged behavior. Female prisoners sometimes are subjected to sexual harassment and violent interrogation by male police and prison officials.

In April the chairman of Sana'a governorate's prosecutor's office, Salem Ahmed Al-Shaiba, inspected several illegal prisons operated by the Sana'a governor's office and sent his findings to the Attorney General. According to Al-Shaiba's findings, 19 individuals had been imprisoned beyond their legal sentence; several prisoners were being detained in handcuffs illegally; numerous individuals were being detained illegally in connection with civil or commercial cases or because they had disobeyed a tribal sheikh; and 43 persons from 1 region (Shibam Al-Gharas) were being detained on the same charge (shooting at a truck). Al-Shaiba informed the Attorney General that he had requested then-Sana'a governor Naji Al-Sufi to release the illegally imprisoned individuals, but that the governor had taken no action. In July Al-Shaiba reported being harassed by then-governor Al-Sufi. The Attorney General took no action on the findings of the inspection report. Al-Shaiba took a voluntary leave of absence from his post and subsequently was transferred to the Judicial Inspection Unit in the Attorney General's office. Governor Al-Sufi was relieved of his post in October (see Section 1.e.).

The Government participated in a series of events from September 1998 to February that were conducted by Penal Reform International (PRI), with support from a foreign embassy and the Taiz-based Human Rights Information and Training Center. These included a 2-day seminar on penal reform and a week-long prison management training session in which officials from five prisons participated. The final event of the program, a wrap-up session that would have brought the participants together to compare notes and evaluate progress, could not take place because of unspecified problems that arose between the Government and PRI. However, donor-government relations on prison reform remain good. The Ministry of Interior has expressed interest in further cooperation but has indicated a preference for working with experts with direct experience in prison management.

The Government tightly controls access to detention facilities by nongovernmental organizations (NGO's), although it sometimes permits local and international human rights monitors access to persons accused of crimes. The PSO also does not permit access to its detention centers. The Government claims that it does not hold political prisoners.

Early in the year, the Supreme National Committee for Human Rights visited Sana'a central prison and, after finding that minors were being incarcerated with adults, arranged for them to be incarcerated separately in two age groups, 11 to 14 years of age and 15 to 18 years of age. In October 50 juvenile inmates were moved from the prison to an orphanage run by the Ministry of Social Affairs where they are to attend school and participate in other activities (see Sections 4 and 5). The Committee also initiated a project to build, with the support of local businessman, the country's first youth reformatory (see Section 4).

The Human Rights Committee of the Consultative Council continued to conduct spot checks of prisons and to arrange for the expeditious release of persons held improperly.

d. Arbitrary Arrest, Detention, or Exile

The law provides due process safeguards; however, security forces arbitrarily arrest and detain persons. Enforcement of the law is irregular and in some cases nonexistent, particularly in cases involving security offenses. According to the law, detainees must be arraigned within 24 hours of arrest or be released. The judge or prosecuting attorney must inform the accused of the basis for the arrest and decide whether detention is required. In no case may a detainee be held longer than 7 days without a court order. Despite these constitutional and other legal provisions, arbitrary arrest and prolonged detention without charge are common practices.

During the year, there was a significant increase in the number of incidents in which journalists were detained briefly for questioning concerning articles that they wrote that were critical of the Government or that the Government considered sensitive (see Section 2.a.).

The law provides detainees with the right to inform their families of their arrests and to decline to answer questions without an attorney present. There are provisions for bail. In practice many authorities abide by these provisions only if bribed. Defense lawyers claimed that the eight Britons and two Algerians arrested in December 1998 for possessing illegal weapons and explosives and conspiring to commit terrorist acts in Aden (see Section 1.e.) were denied their right to legal counsel. They also contended that defense doctors were not allowed to examine their clients in order to investigate allegations of torture and sexual abuse until several months later. The trial concluded in August, although according to the law, the violation of the right to counsel should have suspended the case.

Citizens regularly complained that security officials did not observe due process procedures when arresting and detaining suspects, particularly those accused of involvement in the bombings and explosions that continued to occur in the south during the year. Security forces sometimes detained demonstrators (see Section 2.b.). In August then-governor of Sana'a Naji al-Sufi reportedly ordered the arrest of Hafed Fadhil, a lawyer representing the opposing party in a case involving one of the governor's friends. In September he illegally detained Judge Mohammed Saad Amer, a member of the Sana'a appeals court, for 2 days (see Section 1.e.).

In cases where a criminal suspect is at large, security forces sometimes detain a relative while the suspect is being sought. The detention may continue while the concerned families negotiate compensation for the alleged wrongdoing. Arbitration, rather than the court system, commonly is used to settle cases.

The Government has failed to ensure that detainees and prisoners are incarcerated only in authorized detention facilities. The Ministry of Interior and the PSO operate extrajudicial detention facilities. A large percentage of the total prison population consists of pretrial detainees. Thousands of persons have been imprisoned for years without documentation concerning charges against them, their trials, or their sentences.

While a few cases of those being held without charge have been redressed through the efforts of local human rights groups (and a few illegally detained prisoners released), the authorities have done nothing to investigate or resolve these cases.

Unauthorized, private prisons also exist in tribal areas, where the Government exercises little authority. Persons detained in these prisons often are held for strictly personal reasons and without trial or sentencing.

The Government does not use forced exile. However, at the end of the 1994 civil war, the Government denied amnesty to the 16 most senior leaders of the armed, secessionist Democratic Republic of Yemen (DRY) who fled abroad. Although they were not forced into exile, they are subject to arrest if they return. The trial of the so-called "16" concluded in March 1998 (see Section 1.c.).

e. Denial of Fair Public Trial

The Constitution provides for an "autonomous" judiciary and independent judges; however, the judiciary is not fully independent, is weak and severely hampered by corruption, executive branch interference, and the frequent failure of the authorities to enforce judgments. Judges are appointed by the executive branch, and some have been harassed, reassigned, or removed from office following rulings against the Government. For example there are credible reports that during the year that the presidential appointee, then-governor of Sana'a, Naji al-Sufi, repeatedly interfered with and attempted to intimidate members of the judiciary, especially judges who made rulings that he did not like. In May he ordered police to surround the house of and arrest Judge Mohammed Bin Ali Luqman, head judge on the Haraz court in Sana'a governorate. In July he harassed the chairman of Sana'a governorate's prosecutor's office, Salem Ahmed Al-Shaiba, after Al-Shaiba reported to the Attorney General that the governor's office was running illegal prisons (see Section 1.c.). In August he instructed armed guards to bring Hafeed Fadhil, a lawyer representing the opposing party in a case involving one of the governor's friends, to the governorate's illegal jail, where he was assaulted by Al-Sufi and detained for the rest of the day. In September governor Al-Sufi detained Judge Mohammed Saad Amer, a member of the Sana'a appeals court, for 2 days. Governor Al-Sufi was relieved of his post in October, but no legal action was taken against him. Many litigants maintain, and the Government acknowledges, that a judge's social ties and susceptibility to bribery sometimes have greater influence on the verdict than the law or the facts of the case. Many judges are poorly trained, and some closely associated with the Government often render decisions favorable to it. The judiciary is hampered further by the Government's frequent reluctance to enforce judgments.

There are five types of courts: criminal; civil (for example, divorce and inheritance); administrative; commercial; and military.

All courts are governed by Shari'a. There are no jury trials under Shari'a. Criminal cases are adjudicated by a judge who plays an active role in questioning witnesses and the accused. By law the Government must provide attorneys for indigent defendants. However, in practice this never occurs; neither the Criminal Code nor the judicial budget allows for defense attorneys.

By law prosecutors are a part of the judiciary and independent of the Government. However, in practice prosecutors look upon themselves as an extension of the police. They do not receive the normal judicial training that judges do, nor do they practice their legal obligation to penalize police who delay reporting arrests and detentions.

Defense attorneys are allowed to counsel their clients, address the court, and examine witnesses. Defendants, including those in commercial courts, have the right to appeal their sentences. Trials are public. However, all courts may conduct closed sessions "for reasons of public security or morals." Foreign litigants in commercial disputes have complained of biased rulings. However, some foreign companies have won cases against local defendants and seen the decisions enforced.

In addition to regular courts, the law permits a system of tribal adjudication. The results of such mediation carry the same weight as court judgments. Persons jailed under the tribal system usually are not charged formally with a crime.

Prior to unification, approximately half of the judges working in southern Yemen were women. However, after the 1994 civil war, conservative leaders of the judiciary reassigned many southern female judges to administrative or clerical duties. Although two female judges continue to practice in Aden, there are no female judges in northern courts.

The Government continued the program it began in late 1997 to reform the judiciary. This comprehensive, long-term reform program intended to improve the operational efficiency and statutory independence of the judiciary by putting reform-minded personnel into the courts; forming an inter-ministerial council to oversee the reform project; publishing a judicial code of ethics; and making the Supreme Court smaller, more efficient, and less corrupt. Foreign donors have offered to provide assistance in implementing judicial reform, which the Government has accepted. However, the reform program's effect is not yet clear, and there were no major developments during the year.

In February a U.N. Development Program team visited the country to conduct an assessment that would serve as the basis of a second judicial reform program, which was scheduled to begin in January 2000 and end in 2002. In March the team noted the Government's willingness to address longstanding issues of accountability and transparency, and to implement laws more effectively. The program's goals are to modernize Ministry of Justice equipment, improve the country's legal libraries, provide special training for the Attorney General's office, enhance public awareness of the rule of law, and secure a building for the Supreme Court. At year's end, the proposed program had not been funded.

Other judicial reform programs financed by international assistance are intended to focus on the Ministries of Justice and of Legal and Parliamentary Affairs and finance training in business and commercial law for judges; a diagnostic study of judicial education curriculum; training on drafting of legislation; and a review of the country's commercial laws to identify and fix gaps or inconsistencies. At year's end, no date was scheduled for the program to begin.

The security services made several arrests, brought charges, and put on trial a number of persons alleged to be linked to various shootings, explosions, bombings, and other acts of violence that continued throughout the year. Citizens and human rights groups alleged frequently that the judiciary was not observing due process standards in these cases.

Arrested in December 1998, eight Britons and two Algerians were tried from February to August in Aden on charges of possessing illegal weapons and explosives and conspiring to commit terrorist acts. The 6-month trial did not meet minimum international standards for due process. Defense lawyers claimed that the prosecution lacked adequate evidence and that the defendants were tortured, sexually abused, and denied access to their lawyers (see Section 1.c.). In early August, the court sentenced the main suspects, the 18-year-old stepson and 17-year-old son of Islamic militant Abu Hamza al-Masri, to jail terms of 7 and 3 years, respectively. Yemen has accused al-Masri, head of the London-based organization Supporters of Shari'a, of involvement with the AAIA, which has carried out at least one terrorist act in Yemen. Five other defendants received jail terms ranging from 5 to 7 years. The seven defendants appealed the verdict. Two of the Britons received 7-month sentences and were ordered released for time served; another, for reasons of poor health, was ordered released for time served in early summer. Their release was delayed because both the defense and the prosecution appealed the verdicts. The Appeals Court upheld the verdicts, and the three were released. They returned to the United Kingdom in October.

The trial of seven additional AAIA members on terrorism charges began in October. Two of the defendants are being tried in absentia, one has admitted to some of the charges against him, and the remaining four pled not guilty and claim that the prosecution coerced and tortured them into making self-incriminating statements and confessions (see Section 1.c.). The judge issued a ruling prohibiting the publication of details about the trial.

The Government claims that it does not hold political prisoners. Local opposition politicians and human rights activists generally accept this claim; however, some international human rights groups and members of the opposition-in-exile dispute the claim.

At the end of the 1994 civil war, the President pardoned nearly all had who fought against the central Government, including military personnel and most leaders of the unrecognized DRY. The Government denied amnesty to the 16 most senior leaders of the DRY (one of whom is now presumed dead), who fled abroad and who are subject to arrest if they return. In 1997 and 1998, the so-called "16" were tried in absentia on various charges including forming a secessionist government, conspiracy, and forming a separate military. All but two were found guilty, and in March 1998, a judge sentenced five of the defendants to death and three to 10 years in jail. Six persons received suspended sentences, and two were acquitted. Many opposition

figures have urged the President to issue an amnesty for those who received sentences, in the interest of promoting reconciliation between north and south. The President has stated that it is up to the judicial system to pass judgment. Defense attorneys have appealed to a higher court. No judgment has yet been rendered.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

Despite constitutional provisions against government interference with privacy, security forces routinely search homes and private offices, monitor telephones, read personal mail, and otherwise intrude into personal matters for alleged security reasons. Such activities are conducted without legally issued warrants or judicial supervision. Security forces regularly monitor telephone conversations and interfere with the telephone service of government critics and opponents. Security forces sometimes detain relatives of suspects (see Section 1.d.). Government informers monitor meetings and assemblies (see Section 2.b.).

The law prohibits arrests between the hours of sundown and dawn. However, persons suspected of crimes sometimes are taken from their homes in the middle of the night, without search warrants.

In March security forces occupied the village of Sa'eed in Al-Baida governorate evicted residents from their homes, looted villagers' property and livestock, and vandalized the village school and mosque (see Section 1.a.).

Jews traditionally face social (but not legal) restrictions on their residence and their employment (see Section 5).

According to a 1995 Ministry of Interior regulation, no citizen may marry a foreigner without Interior Ministry permission (see Section 5). This regulation does not carry the force of law, and appears to be enforced irregularly. However, some human rights groups have raised concerns about the regulation.

An estimated 5,000 persons use the Internet and 3,540 persons subscribe to it. The Government does not impose restrictions on Internet use, but most persons find that equipment and subscriptions costs are prohibitively high. Teleyemen, a parastatal company under the Ministry of Telecommunications, is the country's sole Internet service provider. According to Teleyemen (see Section 2.a.), the Government blocks sexually explicit websites; however, with the exception of mowj.com, which is the website of the Yemeni National Opposition Front (MOWJ), it does not block politically oriented websites. For example Abu Hamza's web page (see Section 1.e.) is not blocked. There are no indications that Internet usage is monitored by the Government, and there are no reports that it has ever taken action against Internet users.

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution restricts freedom of speech and of the press "within the limits of the law," and the Government influences the media and limits press freedom. Some security officials attempt to influence press coverage by threatening, harassing, and detaining journalists. Although most citizens are uninhibited in their private discussions of domestic and foreign policies, some are cautious in public, fearing harassment for criticism of the Government. The Press Law criminalizes "the humiliation of the State, the Cabinet, or parliamentary institutions," and the publication of "false information" that "threatens public order or the public interest."

The relative freedom of the press permitted between unification (1990) and the civil war (1994) has not been reestablished. An atmosphere of government pressure on independent and political party journals continues that was not present before the civil war. The international human rights group, the Committee to Protect Journalists, criticized the Government for restrictions, harassment, and arbitrary detention directed at journalists.

The Ministry of Information influences the media by its control of most printing presses, by subsidies to certain newspapers, and by its ownership of the country's sole television and radio outlets. Only one newspaper, the thrice-weekly Aden independent Al-Ayyam, owns its own press. The Government selects the items to be covered in news broadcasts, and often does not permit broadcast reporting critical of the Government. However, during the presidential election campaign, the media extensively covered both candidates and reported in full the many critical comments made by the President's opponent. The Government televises parliamentary debates but may edit them selectively to delete criticism.

In 1998 the Government implemented regulations for the 1990 Press Law. The new regulations specify, among other things, that newspapers must apply annually to the Government for licensing renewal, and that they must show continuing evidence of about \$4,375 (YR 700,00) in operating capital. Some journalists welcomed the new regulations, saying that they were long overdue. Others claimed that they were designed to drive some opposition newspapers out of business.

Although newspapers are allowed to criticize the Government, journalists sometimes censor themselves, especially when writing on such sensitive issues as government policies toward the southern governorates, relations with Saudi Arabia and other foreign governments, and official corruption. The penalties for exceeding these self-imposed limits can be arrest for libel, dismissal from employment, or extralegal harassment. Some journalists reported being threatened by security officials to change the tone and substance of their reporting. Journalists must have a permit to travel abroad, although enforcement of this restriction is irregular (see Section 2.d.).

During the year there was a significant increase in incidents in which journalists were detained for questioning for short periods of time for writing articles that were critical of the Government or that the Government considered touched on sensitive subjects. For example, in 1 week in May, six newspapers (Yemen Times, Al-Ayyam, Al-Shoura, Al-Thawri, Al-Wahdawi, and Al-Haq) were summoned to appear before the Special Media Court for violating the Press Law. However, most individual journalists and the Yemeni Journalists Syndicate acknowledge that there was a decrease during the year in incidents of extralegal governmental harassment.

Beginning in late December 1998, the Ministry of Information closed the independent weekly newspaper Al-Ray Al-Amm for 5 months for publishing an article critical of the Government of Saudi Arabia. The newspaper reopened in May.

From mid-December 1998 through late January, security officials in Marib detained Hassan al-Zaidi, a Yemen Times correspondent, and a German journalist who were investigating the kidnaping of a German citizen by tribesmen in the region.

In February PSO officials detained Nu'man Qaid Seif, editor in chief of the opposition Al-Shoura newspaper, for 3 days on the charge of disseminating false information. Seif had written an editorial on corruption critical of President Saleh entitled "The President Is Urged to Fight Corruption."

In February the Ministry of Information closed Al-Shoura newspaper, the newspaper of the Islamist opposition party Union of Popular Forces (UPF), as well as a new, competing version of the same newspaper. The second Al-Shoura appeared following an ideological split in the UPF. Under the Press Law, it is illegal for more than one newspaper to use the same name. Some journalists allege that the Government financed the second Al-Shoura in order to create a pretext to shut down the outspokenly critical original Al-Shoura. A court in April allowed the original Al-Shoura to resume publication and upheld the suspension of the second Al-Shoura, but in September an appeals court ordered the original newspaper to cease publication pending the Supreme Court's decision as to which faction had the right to Al-Shoura's name. At year's end the case remained unresolved.

In March security officials imprisoned Abdul Latif Kutbi Omar, editor in chief of the opposition Rabeta Party-affiliated Al-Haq newspaper, for 4 days for publishing an article claiming that the Government had granted the United States the right to operate a military base on Socotra Island. Some journalists report that authorities suspect Omar of having links to the London-based secessionist leader Abdul-Rahman al-Jiffri, who fled Yemen in 1994 and who now heads the Yemeni National Opposition Front (MOWJ) (see Section 1.e.).

In May four masked armed men severely beat Saif al-Hadheri, the editor in chief of the independent weekly Al-Shumua. A few days prior to the assault, the newspaper published an editorial on corruption that directly criticized the Minister of Finance. The Yemeni Journalists Syndicate and the Committee to Protect Journalists called on the Minister of Interior to investigate the assault. However, a court determined that the issue was personal and dismissed the case.

Also in May, the Ministry of Information threatened to close the Aden weekly Al-Ayyam, the largest-circulating newspaper in the country, after it published an editorial entitled "Let's Talk about Unity from a Social Perspective," which criticized the structure of local government, whereby southern provinces are governed by officials from the north. The Ministry claimed that the editorial instigated "national feuds," separatism, and harmed national unity. Journalist Ali Haitham al-Ghareeb was arrested and held for 5 days. Editor Hisham Ba Sharahil was summoned by state prosecutors and questioned for 4 hours. Ba Sharahil was charged with violating a January court order banning publication of court proceedings of the trial of a group of British nationals whom the Government alleged had conspired to commit acts of terrorism in Yemen; Al-Ayyam had published comments made by the defense lawyer to the British Broadcasting Corporation (BBC). Ghareeb was sentenced to a 10-month suspended prison term. Ba Sharahil received a 6-month suspended sentence and a \$62.50 (YR 10,000) fine.

In June the Government filed a case against Ahmen al-Ashwal, a journalist for Al-Wahdawi newspaper, for publishing an article about corruption in the selection of teachers at Sana'a University. He was fined \$62.50 (YR 10,000).

In June security forces arrested Hassan Bin Husainoon, a journalist with Al-Haq newspaper, for writing an article entitled "In Hadramout there are Non-Unity Practices," which alleged that officials in Hadramout governorate discriminate among residents. In October a court suspended publication of Al-Haq for 1 month for inciting "sectarianism" and "regionalism," and fined editor Abdel Latif Al-Kutbi \$250 (40,000 riyals) and Husainoon and two other journalists, Ismail Al-Riashi and Abdullah Ilamadi, \$62.50 (10,000 riyals).

In August journalist and lawyer Nabil al-Amoudi was brought before the Abyan preliminary court for writing an article critical of the Government and the human rights situation in Yemen. The case still was pending at year's end, but al-Amoudi is not imprisoned.

In August Jamal Ahmed Amer, editor of Al-Wahdawi newspaper and member of the opposition Nasserite Party, was detained and held incommunicado for 6 days for writing an article critical of Yemeni-Saudi Arabian relations. The Minister of Interior personally questioned Amer by telephone. Al-Wahdawi's editor, Abdelaziz Sultan, also was called for questioning and interrogated personally by the Minister of Information. Amer has filed a suit against the Minister of Interior, which still is pending. Also in August, security officials detained Jamil al-Samit, a journalist for the Taiz-based official newspaper Al-Jumhuriyah, for writing an article about the use of excessive force by the military in putting down a civilian protest in Quradah (see Section 1.a.). He remains imprisoned in Taiz central prison.

In September Al-Ayyam's editor Hisham Ba Sharahil twice was called to the Aden prosecutor's office for questioning. He first was called in connection to the publication in August of an interview with Islamic militant Abu Hamza al-Masri (see Section 1.e.), then was summoned a few days later, for publication in July of an opposition statement that allegedly misquoted the Koran.

In October 1998, three journalists from Al-Thawri, the newspaper of the Yemen Socialist Party, were acquitted of all charges related to the case brought against them by the Sana'a prosecutor's office in relation to articles criticizing the Government.

The editor of Al-Shoura, the newspaper of the Islamist opposition party UPF, stated in August that traditional mediation and a published apology effectively had ended the case brought against the newspaper by the Government in 1995. The case involved two journalists who had been found guilty of slander and character assassination against an important sheikh, a leader of the Islaah party. The judge ordered that the newspaper be closed and that the journalists be flogged with 80 lashes, stopped from working for 1 year, and fined \$625 (YR 100,000). The Ministry of Justice suspended this judgment while reviewing its conformity with law and judicial procedure.

After he died in a traffic accident in June, the Special Media Court terminated the case that it had filed against Abdul Aziz al-Saqqaf, the editor of the English-language weekly Yemen Times, for publishing a story questioning the disposition of government profits from oil exports. The Yemen Times requested that the case be continued, arguing that the charges involved the newspaper's journalism, not Al-Saqqaf personally, but the judge sustained his ruling.

The Yemeni Journalists Syndicate defends freedom of the press and publicizes human rights concerns. For example in September it sponsored a symposium on "Media and Its Role in Spreading a Human Rights Culture." Critics claim that the Syndicate has too many nonjournalist members who support government policy. In the spring, several independent and opposition party journalists formed a rival union, the Committee for the Defense of Journalists, under the leadership of Hisham Ba Sharahil, the publisher of Al-Ayyam newspaper, to defend more vigorously journalists harassed by the Government.

Customs officials confiscate foreign publications regarded as pornographic or objectionable because of religious or political content. The Ministry of Information routinely delayed the distribution of international Arabic-language dailies such as Al-Hayat and Al-Sharq Al-Awsat in an apparent effort to decrease their sales in the country. For several days in February, the Ministry banned sales of Al-Hayat because it published a threat from the Aden-Abyan Islamic Army against foreign ambassadors in Sana'a, and Al-Sharq Al-Awsat because it printed allegations that Yemen was providing arms to the Aideed faction in Somalia and supporting Eritrea in that country's war with Ethiopia.

An author must obtain a permit from the Ministry of Culture to publish a book. Most books are approved, but the process is time-consuming for the author. The author must submit copies of the book to the Ministry. Officials at the National Library must read and endorse the text. It then is submitted to a special committee for final approval. If a book is not deemed appropriate for publication, the Ministry simply does not issue a decision. Publishers usually do not deal with an author who has not yet obtained a permit.

An estimated 5,000 persons use the Internet and 3,540 persons subscribe to it. The Government does not impose restrictions on Internet use, but most persons find that equipment and subscriptions costs are prohibitively high. Teleyemen, a parastatal company under the Ministry of Telecommunications, is the country's sole Internet service provider. With the exception of mowj.com, the website of the Yemeni National Opposition Front, the Government does not block politically oriented websites (see Section 1.f.).

Academic freedom is restricted somewhat because of the extreme politicization of university campuses. A majority of professors and students align themselves with either the ruling GPC party or the opposition Islaah party. Each group closely monitors the activities of the other. Top administrative positions usually are awarded to political allies of these two major parties.

b. Freedom of Peaceful Assembly and Association

There are no constitutional restrictions on the right to assemble peacefully; however, the Government limited this right in practice. The Government claims that it bans and disrupts some demonstrations to prevent them from degenerating into riots and violence. The Government requires a permit for these purposes, but it issues them routinely. Government informers monitor meetings and assemblies. Following the demonstrations of June and July 1998, the Government sent a draft law to Parliament in September 1998 that would impose significant limitations on the right to assemble and to demonstrate. The draft law was criticized by many lawyers, human rights activists, and members of Parliament. The Parliament continues to withhold action on this proposed law.

In April security authorities banned a rally by the Yemeni Socialist Party in Al Dali governorate to commemorate the deaths of the two persons who were killed by police during violent demonstrations in Mukallah in April 1998. YSP leaders claimed the authorities banned the demonstration under the pretext that there is no law to regulate marches and demonstrations.

In July police refused to allow students at Sana'a University to organize a demonstration to protest the university's system of administering examinations.

There are no constitutional restrictions on the freedom of association, and the Government generally respects this right in practice. Associations must obtain an operating license from the Ministry of Labor, usually a routine matter.

Freedom of Religion

Islam is the state religion, and although followers of other religions are free to worship according to their beliefs, the Government places some restrictions on religious practice; it bans proselytizing by non-Muslims and forbids conversions.

Virtually all citizens are Muslims, either of the Zaydi branch of Shi'a Islam or the Shafa'i branch of Sunni Islam. There are also some Ismailis in the north. Private Islamic organizations may maintain ties to pan-Islamic organizations and operate schools, but the Government monitors their activities.

Most Christians are foreign residents, except for a few families of Indian origin in Aden. There are several churches and Hindu temples in Aden, but no non-Muslim public places of worship exist in the former North Yemen. The Government does not allow the building of new non-Muslim places of worship without permission. Church services are held regularly without harassment in private homes or facilities such as schools. However, security forces occasionally censor the mail of Christian clergy who minister to the foreign community, ostensibly to prevent proselytizing.

Christian missionaries operate in Yemen and most are dedicated to the provision of medical services; others are employed in teaching and social services.

Under Islam the conversion of a Muslim to another religion is considered apostasy, a crime punishable by death. There were no reports of cases in which the crime has been charged or prosecuted by government authorities.

Nearly all of the country's once sizable Jewish population has emigrated. There are no legal restrictions on the few hundred Jews who remain, although there are traditional restrictions on places of residence and choice of employment (see Section 5).

Following unification of North and South Yemen in 1990, owners of property previously expropriated by the Communist government of the former People's Democratic Republic of Yemen, including religious organizations, were invited to seek restitution of their property. However, implementation of the process, including for religious institutions, has been extremely limited, and very few properties have been returned to any previous owner.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

There were some limits on freedom of movement. In general the Government does not obstruct domestic travel, although the army and security forces maintain checkpoints on major roads. There were no reports that security forces killed or injured persons at checkpoints during the year, as had been reported in previous years (see Section 1.a.).

In certain areas, armed tribesmen occasionally man checkpoints alongside military or security officials, and subject travelers to physical harassment, bribe demands, or theft.

The Government does not obstruct routinely foreign travel or the right to emigrate and return. However, journalists must have a permit to travel abroad. Women must obtain permission from a male relative before applying for a passport or departing the country. Enforcement of the restrictions on journalists and women is irregular.

Immigrants and refugees traveling within the country often are required by security officials at government checkpoints to show that they possess resident status or refugee identification cards.

The law does not include provisions for granting refugee or asylee status in accordance with the provisions of the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. However, the Government has granted refugee status to some persons and resettled them.

The Government in 1998 offered first asylum to 13,937 Somalis, who fled the fighting in that country. This brought the total number of registered Somali refugees in the country to 57,400. The Government also cooperated with the U.N. High Commissioner for Refugees (UNHCR) in assisting refugees from Eritrea (2,500 persons), Ethiopia (2,600 persons) and various other countries (150 persons). The Government permitted the UNHCR to monitor the situation of 2,000 Iraqis in Yemen.

Approximately 47,300 Somali refugees have been integrated into society and are no longer receiving food or financial assistance from the UNHCR. However, they still are eligible for medical treatment at UNHCR facilities in Aden and Sana'a. Also, the UNHCR provides small loans to refugee women who wish to initiate income-generating activities.

The UNHCR provides food and medical assistance for up to 10,500 Somalis and Ethiopians in a temporary refugee camp at al-Jahin in Abyan governorate. Children receive schooling in the camp, and adults are eligible for vocational training. The Government in 1998 approved a new UNHCR facility to be built at a site in Lahaj governorate, and at year's end, it was under construction. The UNHCR, in coordination with the Government, issues identification cards to Somali refugees and recognized cases of other nationalities.

The UNHCR reports that the Government consults with it prior to returning illegal immigrants to their countries of origin in order to avoid the involuntary repatriation of refugees with a credible fear of persecution. There were no reports of the forced return of persons to a country where they feared persecution. The UNHCR facilitated the voluntary repatriation of some Eritrean and Ethiopian refugees, as well as the voluntary return of 1,659 Somali refugees to areas of Somalia that are considered safe.

Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides citizens with the right to change their government; however, there are significant limitations in practice. The Government is by law accountable to the Parliament; however, the Parliament is not yet an effective counterweight to executive authority. Decisionmaking and real political power still rest in the hands of the executive branch, particularly the President. In addition the Constitution prohibits the establishment of parties that are contrary to Islam, oppose the goals of the Yemeni revolution, or violate Yemen's international commitments.

The President appoints the Prime Minister, who forms the Government. The Cabinet consists of 24 ministers. Parliament is elected by universal adult suffrage; the first such election was held in 1993.

Ali Abdullah Saleh, the President and leader of the GPC, was elected to a 5-year term in the country's first nation-wide direct presidential election in September, winning 96.3 percent of the vote. The Constitution provides that the President be elected by popular vote from at least two candidates endorsed by Parliament, and the election was generally free and fair; however, there were some problems, including the lack of a credible voter registration list. In addition the President was not opposed by a truly competitive candidate because the candidate selected by the leftist opposition coalition did not receive the minimum number of votes required to run from the GPC-dominated Parliament (the other opposition party chose not to run its own candidate, despite its seats in Parliament). The President's sole opponent was a member of the GPC. There was no significant violence associated with the election.

International observers judged the 1997 parliamentary elections as "reasonably free and fair" despite some problems associated with the voting.

The President has the authority to introduce legislation and promulgate laws by decree when Parliament is not in session. Decrees must be approved by Parliament 30 days after reconvening. In theory if a decree is not approved, it does not become law; in practice, a decree remains in effect unless it is later affirmatively rejected by Parliament. Although the

Constitution also permits Parliament to initiate legislation, to date it has not done so. Parliament generally is relegated to debating policies that the Government already has submitted, although it sometimes successfully revises or opposes draft legislation submitted by the Government. Despite the fact that the President's party enjoys an absolute majority, Parliament has rejected or delayed action on major legislation introduced by the Government, and on occasion it has forced significant modification. The Parliament also has criticized strongly the Government for some actions, including the lifting of subsidies that led to widespread violence in June 1998. Ministers frequently are called to Parliament to defend actions, policies, or proposed legislation, and parliamentarians are sometimes sharply critical during these sessions. Parliamentarians and parliamentary staff attended foreign NGO-sponsored training workshops designed to increase their independence and effectiveness.

The President is advised by the 58-member Consultative Council, a board of appointed notables chaired by a former prime minister. The Council advises the President on a range of issues but has no constitutional powers.

Formal government authority is centralized in Sana'a; many citizens, especially in urban areas, complain about the inability of local and governorate entities to make policy or resource decisions. In some governorates, tribal leaders exercise considerable discretion in the interpretation and enforcement of the law. Central government authority in these areas is often weak.

The multiparty system remains weak. The GPC dominates the Parliament, and Islaah is the only other party of significance. All parties must be registered in accordance with the political parties law of 1991, which stipulates that each party must have at least 75 founders and 2,500 members. Some oppositionists contend that they cannot organize new parties because of the prohibitively high legal requirements on the minimum number of members and leaders. Twelve parties participated in the 1997 elections, compared with 16 in 1993. The YSP and several smaller parties boycotted the 1997 elections, leading to lower voter turnout in the south. These same parties also boycotted the country's first nationwide direct presidential election in September. There was no significant violence associated with this election.

The Government provides financial support to political parties, including a small stipend to publish their own newspapers.

Although women vote and hold office, these rights often are limited by cultural norms and religious customs; and women are underrepresented in Government and politics. Two women were elected to the Parliament in 1997 (the same number as in 1993), and an increasing number hold senior leadership positions in the Government or in the GPC. Many Akhdam, a small ethnic minority that may be descendants of African slaves, are not permitted to participate in the political process, mainly due to their inability to obtain citizenship. There are no longer any credible reports that members of religious minorities are not permitted to participate in the political process.

Section 4. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The concept of local nongovernmental human rights organizations is relatively new, with the first groups forming only in the years since unification. Several groups held workshops and other activities during the year without government interference and often with government support.

The Government cooperates with NGO's, although NGO's complain that there is a lack of response to their requests from government officials. The Government's ability to be responsive is limited in part by a lack of material and human resources. In 1998 the Government introduced a new draft law for regulating the formation and activities of NGO's. While more liberal than the law it is designed to replace, the proposal still contains significant limitations on such organizations. The Parliament again failed to take any action on the proposed new law during the year.

Several new NGO's devoted to human rights education and democratization were formed during the year. The most notable among them are: Al Nushataa, or "The Activists," a group formed by former members of the Yemeni Human Rights Organization, whose first activity was an art show on human rights at the French cultural center; the Organization of the

Defense of Human Rights, a lawyers' group formed by the attorney and parliamentarian Mohamed Naji Alao; and the National Center for Human Rights and Democratic Development, an NGO formed in September by journalist Jamal Awadi. None of these groups is funded by the Government.

The Taiz-based Human Rights Information and Training Center (HRITC), perhaps the country's most respected human rights NGO sponsored training workshops for other NGO's. Several donors have supported the HRITC. The HRITC, in cooperation with a foreign embassy, coordinated the series of events conducted by Penal Reform International from September 1998 to February (see Section 1.c.).

The Yemeni Organization for the Defense of Liberties and Human Rights, the only NGO without government sponsorship that engages in human rights advocacy as such, is based in Aden. Although the organization continued to suffer from a lack of funds, it actively publicized human rights abuses, particularly in the south, and provided support to new human rights NGO's.

In June 1998, Penal Reform International (PRI), a London-based NGO, conducted a fact-finding mission to Yemen. It identified several issues of concern, including the mistreatment of prisoners, lack of education and resources for prison officials, and unsanitary and overcrowded conditions. With the support of a foreign embassy and the HRITC, PRI organized prison management training workshops and other activities for prison and security officials from September 1998 to February.

Amnesty International, Human Rights Watch, the Parliament of the European Union, and the Committee to Protect Journalists observe the country closely. The International Committee of the Red Cross (ICRC) maintains a resident representative in Yemen. The Government has given these groups broad access to government officials, records, refugee camps, and prisons. The Government had acknowledged some abuses alleged in a 1997 AI report, and rejected other allegations. AI's follow-up report, issued in July, criticized the Government for not keeping its promise to investigate some of these abuses. The Government claims that it responded to AI, and passed the results of its investigations to the UNHRC, but that the information AI provided was inadequate for effective investigation and conclusive action.

The Yemeni Human Rights Organization (YHRO) is a local human rights group headquartered in Sana'a with branches in seven other cities. It was founded by the Government, and oppositionists as well as some human rights experts have viewed its findings as not objective. The head of the YHRO, a member of the judiciary, was transferred from his post as head of the Sana'a Court of Appeals to the Dhamar Court of Appeals in 1998. This was seen by some observers as a demotion or an attempt by the Government to marginalize the judge, who was seen as too independent on human rights questions.

The Supreme National Committee for Human Rights, which was formed in 1997 and reports to the Deputy Prime Minister/Minister of Foreign Affairs, is mandated with ensuring that Yemen meets its obligations with respect to implementing international human rights conventions and to look into specific instances of abuse.

In March the Government implemented a series of reforms to institutionalize and enhance the independence of the committee. These reforms included the establishment of a general coordinator position with the rank of Under Secretary; the addition of the Ministers of Information and of Labor and Vocational Training to the committee, the allocation of an independent budget and accounting unit, and the creation of an advisory commission that includes local legal experts, academics, and human rights activists.

Early in the year, after visiting Sana'a central prison and finding that minors were being incarcerated with adults, the committee arranged for them to be incarcerated separately in two age groups, 11 to 14 years of age and 15 to 18 years of age. In October 50 juvenile inmates were moved from the prison to an orphanage run by the Ministry of Social Affairs where they are to attend school and participate in other activities (see Sections 1.c. and 5). The Committee also initiated a project to build with the support of local businessman the country's first youth reformatory. In September committee officials traveled to several governorates to monitor the presidential elections. In October in the first training of its kind, the committee conducted a series of human rights workshops for police officers in Sana'a and several other governorates. The committee plans to continue its human rights training in 2000. The committee also is studying ways to address the problem of female prisoners being held longer than their terms.

The committee views education to effect cultural change as its highest priority. To this end, it sought support from donors during the year for a project to make human rights a part of secondary school curriculums. The committee has been less active in looking into specific cases of abuse. Many persons alleged that it has not followed up on its stated commitment to investigate allegations of human rights abuses. For example in 1998 the committee declined to investigate the case of Wadia al-Shaibani, who reportedly died while in the custody of security forces in Aden (see Section 1.a.). Instead, it accepted the official coroner's report of death by suicide. The committee is hampered by a lack of human and material resources.

The Human Rights Committee of the President's Consultative Council has had limited success in investigating human rights abuses. However, members of the Committee expressed frustration at the lack of subsequent action by the authorities. Its activities were affected deeply by the death of its chairman, Abdulaziz al-Saqqaf, in an automobile accident in March. The new chairman is Abu Bakr al-Qirby.

A parliamentary human rights committee has investigated some reports of human rights abuses. It suffers from lack of official and financial support and has no authority except to issue reports.

The Committee to Combat Torture is composed of 100 senior parliamentarians and party leaders, including some opposition members, but apparently was inactive during the year.

The Center for Future Studies, a think tank affiliated with the Islaah Party, issues an annual report on human rights practices, providing a wide-ranging overview of human rights. There is little followup to the report.

Two delegations from the UNHRC visited in late 1998. One delegation looked into what progress the Government had made on cases of "disappearances" (see Section 1.b.). The other conducted an assessment of the Government's need for technical assistance, particularly for the Supreme National Committee on Human Rights.

Section 5. Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution states that "all citizens are equal in general rights and duties," and that society "is based on social solidarity, which is based on justice, freedom, and equality according to the law; however, discrimination based on race, sex, disability, and, to a lesser extent, religion, exists. Entrenched cultural attitudes often prevent women from enjoying equal rights."

Women

Although spousal abuse is reportedly common, it generally is undocumented. In Yemen's traditional society, an abused woman would be expected to take her complaint to a male relative (rather than the authorities), who should intercede on her behalf or provide her sanctuary if required. The press and women's rights activists only recently have begun to investigate or report on violations of women's rights. During the year, violence against women was the subject of at least two women's conferences and featured in a cover story of the human rights magazine, Al-Qistas.

Women face significant restrictions on their role in society. The law, social custom, and Shar'ia discriminates against women. Men are permitted to take as many as four wives, although very few do so. By law the minimum age of marriage is 15. However, the law largely is not enforced, and some girls marry as early as age 12. In 1998 some conservative Members of Parliament attempted to eliminate the "minimum age" requirement on the grounds that parents should decide when their daughters are old enough to marry. Their draft law failed by a large majority. A 1998 draft law to raise the minimum age of marriage to 18 also failed by a large majority. The law stipulates that the wife's "consent" is required; "consent" is defined as "silence" for previously unwed women and "pronouncement of consent" for divorced women. The husband and the wife's "guardian" (usually her father) sign the marriage contract; in Aden and some outlying governorates, the wife also signs. The practice of bride price payments is widespread, despite efforts to limit the size of such payments.

The law stipulates that the wife must obey the husband. She must live with him at the place stipulated in the contract, consummate the marriage, and not leave the home without his consent. Husbands may divorce wives without justifying their action in court. Women have the legal right to divorce; however, they must provide a justification such as nonsupport, impotence, or taking a second wife without her consent. Following a divorce, the family home and older children often are awarded to the husband. The divorced woman usually returns to her father's home, or to the home of another male relative. Her former husband must continue to support her for another 3 months, since she cannot remarry until she proves that she is not pregnant.

Women who seek to travel abroad must obtain permission from their husbands or fathers to receive a passport and to travel. They also are expected to be accompanied by male relatives. However, enforcement of this requirement is irregular.

Shari'a-based law permits a Muslim man to marry a Christian or Jewish woman, but no Muslim woman may marry outside of Islam. Married women do not have the right to confer citizenship on their foreign-born spouses; however, they may confer citizenship on children born in Yemen of foreign-born fathers.

According to a 1995 Interior Ministry regulation, any citizen who wishes to marry a foreigner must obtain the permission of the Ministry. A Yemeni woman wishing to marry a foreigner must present proof of her parents' approval to the Interior Ministry. A foreign woman who wishes to marry a Yemeni man must prove to the Ministry that she is "of good conduct and behavior," and "is free from contagious disease." There are no corresponding requirements for men to demonstrate parental approval, good conduct, or freedom from contagious diseases. Although the regulation does not have the force of law and is applied irregularly, some human rights groups have raised concerns about it.

The Government consistently supports women's rights and the expansion of the public role of women. The President frequently speaks publicly about the importance of women's development. During the year, the Prime Minister mandated that all ministries must promote at least one woman to the director general level; at year's end only the Justice and Interior Ministries had failed to do so. Several ministries have several female director generals. With the Government's active support, bilateral and multilateral donors have initiated long-term (1994-2004) projects worth \$31 million (YR 4.96 billion) aimed at advancing vocational education and reproductive health for women and girls.

An estimated 76.3 percent of women are illiterate, compared with approximately 36.6 percent of men. The fertility rate is 6.7 children per woman. Most women have little access to basic health care. Only approximately 22 percent of births are attended by trained health-care personnel. Even where clinics are available, many women do not use them because their male relatives, or they themselves, refuse to allow a male doctor to examine them.

In general women in the south, particularly in Aden, are better educated and have had somewhat greater employment opportunities than their northern counterparts. However, since the 1994 civil war the number of working women in the south appears to have declined, due not only to the stagnant economy but also to increasing cultural pressure from the north.

The National Women's Committee (NWC), a government-sponsored semi-independent women's association, promotes female education and civic responsibility. In September the NWC organized a highly publicized conference on women's role in the electoral process at which the President delivered the keynote address. There are numbers of recently formed NGO's working for women's advancement. These include the Social Association for Productive Families, which promotes vocational development for women; the Women and Children's Department of the Center for Future Studies, which organizes seminars and publishes studies on women and children; the Woman and Child Development Association, which focuses on health education and illiteracy; and the Yemeni Council for Motherhood and Childhood, which provides microcredit and vocational training to women.

Children

While the Government has asserted its commitment to protect children's rights, it lacks the resources necessary to ensure adequate health care, education, and welfare services for children. The United Nations Development Program estimates that 30 percent of children are malnourished. The infant mortality rate is 75 deaths per 1,000 births, down from 105 in 1998.

The law provides for universal free education for 9 years, which is compulsory, but this provision is not enforced. Many children, especially girls, do not attend primary school. According to UNICEF's "Report on Children and Women in Yemen: 1998" (released in September), an estimated 45 percent of primary school-age children (ages 6 to 15) do not attend school. Some rural areas have no schools for their school-age population. In 1998 to encourage girls' attendance at school, Parliament passed a law that eliminated school fees and the requirement of uniforms for girls. According to the UNICEF report, enrollment of girls in school increased by 4 percent in 1998, but enrollment of boys declined 10 percent because older boys from poor families left school to work.

Early in the year, after visiting Sana'a Central Prison and finding that minors were being incarcerated with adults, the Supreme National Committee for Human Rights arranged for them to be incarcerated separately in two age groups, 11 to 14 years old and 15 to 18 years old. In October 50 juvenile inmates were moved from the prison to an orphanage run by the Ministry of Social Affairs where they can attend school and participate in other activities (see Sections 1.c. and 4). The Committee also initiated a project to build with the support of local businessman the country's first youth reformatory (see Section 4).

Child marriage is common in rural areas. Although the law requires that a girl be 15 to marry, it is not enforced, and marriages of girls as young as age 12 occur. Female genital mutilation (FGM), which is widely condemned by international health experts as damaging to both physical and psychological health, is practiced by some citizens. According to a 1997 demographic survey conducted by the Government, nearly one-fourth (23 percent) of women who have ever been married have been subjected to FGM. However, the prevalence of the practice varies substantially by region. Citizens of African origin or those living in communities with heavy African influence are more likely to practice FGM. For example according to the survey, approximately 69 percent of women living in coastal areas were subjected to FGM, compared with 15 percent in mountainous regions, and 5 percent in the plateau and desert regions. The procedure is confined mainly to excision, with infibulation being practiced only among East African immigrants and refugees. FGM rarely is reported among the Shaf'ai religious sect, and adherents to the Zaydi sect reputedly do not practice it at all. The Government's publication of the data on FGM was an important first step in addressing this problem; however, while some government health workers and officials actively and publicly discouraged the practice, the Government has not passed legislation to outlaw it nor have local women's groups adopted the problem as a major concern.

People with Disabilities

Persons with mental and physical disabilities face distinct social prejudices, as well as discrimination in education and employment. In 1998 the Government mandated acceptance of disabled students in schools, exempted them from paying tuition, and required that schools be made more accessible to disabled students, but it is unclear to what extent these new laws have been implemented. There is no national law mandating the accessibility of buildings for the disabled. Some disabled persons are reduced to begging to support themselves. Mentally ill patients, particularly those who commit crimes, are imprisoned and even shackled when there is no one to care for them. Persons with mental problems sometimes are arrested without charge and placed in prisons alongside criminals (see Section 1.c.). The ICRC, in cooperation with the Yemeni Red Crescent Society, built and now staffs separate detention facilities for mentally disabled prisoners. These facilities are located in Sana'a, Ibb, and Taiz, and collectively can care for a population of 300 persons.

The Handicapped Society, the country's largest NGO involved in assisting the disabled, was founded in 1988 and has branches in 13 governorates. Funded by international donors (primarily the Swedish organization Radda Barnen) and a modest annual grant from the Government, the Handicapped Society provides rehabilitation assistance and vocational training, and sponsors cultural and sports activities for disabled persons. The Ministry of Education has assigned three teachers to teach students at the disabled-accessible classrooms at the Society's Sana'a branch. Believing that the needs of

disabled women were not being addressed adequately by the Handicapped Society, activists in 1998 established with government support the Challenge Society. The Challenge Society provides 85 disabled females between the ages of 6 and 30 with medical care, support services, and vocational training.

Religious Minorities

Apart from a small but undetermined number of Christians and Hindus in Aden, Jews are the only indigenous religious minority. Their numbers have diminished significantly--from several tens of thousands to a few hundred--due to voluntary emigration. Although the law makes no distinction, Jews traditionally are restricted to living in one section of a city or village and often are confined to a limited choice of employment, usually farming or handicrafts. Jews may, and do, own real property.

Christian clergy who minister to the foreign community are employed in teaching, social services, and health care. Occasionally the security authorities harass such clergy by censoring their mail, ostensibly to prevent proselytizing (see Section 2.c.). In July 1998, a gunman murdered three nuns belonging to the Sisters of Charity order in Hodeidah. The Government immediately arrested the individual, who the Government declared was deranged. No trial was held and the person was incarcerated in a psychiatric facility. The attack did not appear to be part of an organized campaign against Christians or foreigners.

A hospital in Jibla operated by the Baptist Church has experienced occasional threats and harassment from local Islamic extremists who feared that the hospital might be used to spread Christianity. There have been no reports of threats by extremists in several years.

National/Racial/Ethnic Minorities

Yemenis with a non-Yemeni parent, called "muwalladin," sometimes face discrimination in employment and in other areas. Persons who seek employment at Sana'a University or admission to the military academy must by law demonstrate that they have two Yemeni parents. Nonetheless, many senior government officials, including Members of Parliament and ministers, have only one Yemeni parent. In some cases, naturalization of the non-Yemeni parent is sufficient to overcome the "two-Yemeni parent" requirement.

A small group of persons claiming to be the descendants of ancient Ethiopian occupiers of Yemen, who later were enslaved, are considered the lowest social class. Known as the "Akhdam" (servants), they live in squalor and endure persistent social discrimination.

There were reports by human rights groups that some immigrants of African origin were having difficulty in securing Interior Ministry permission to marry Yemeni citizens. An Interior Ministry regulation requires that marriages of citizens and foreigners be approved in advance by the Ministry (see also Section 1.f.).

Tribal violence continued to be a problem during the year, and the Government's ability to control tribal elements responsible for kidnappings, shootings, and other acts of violence remained limited. A prominent sheikh was killed in Sana'a in April, reportedly in connection with a tribal revenge case dating to 1962 between the Abu Nashtan and Al-Faqih tribes. In May an estimated 250 tribesmen from the Hashid and Redaa tribes stormed Hodeidah central prison, where authorities had detained an individual responsible for igniting a blood feud between the two tribes. In July tribesmen from the Haraz tribe blocked the Sana'a-Hodeida road, kidnapping drivers and seizing six trucks belonging to the rival Jaham tribe. Also in July, tribesmen from the Al-Ahwaj tribe attempted to kill the commander of the Army Corps of Engineers, who is a member of the rival Abu Luhum tribe. The Hashid and Khowlan tribes are involved in an ongoing violent feud in which several persons have been killed. Tensions, which periodically escalate into violent confrontations, continue between the Government and the Khowlan and other tribes in Marib.

Section 6. Worker Rights

a. The Right of Association

The Constitution provides that citizens have the right to form unions. While the Government permits this right in practice, it also seeks to place its own personnel in positions of influence inside unions and syndicates. The 1995 Labor Law (amended in 1997) provides both for the right to form unions and for the right to strike. However, a strike is not allowed unless a dispute between workers and employers is "final" and "incontestable" (a prior attempt must have been made to settle through negotiation or arbitration). The proposal to strike must be submitted to at least 60 percent of all concerned workers, of whom 25 percent must vote in favor of the proposal. Strikes for explicit "political purposes" are prohibited. In practice the law tends to discourage strikes. The law provides equal labor rights for women, and it confirms the freedom of workers to associate. The Labor Law does not stipulate a minimum membership for unions, nor does it limit them to a specific enterprise or firm. Thus, citizens may associate by profession or trade.

The Yemeni Confederation of Labor Unions (YCLU) remains the sole national umbrella organization. The YCLU claims 350,000 members in 15 unions and denies any association with the Government, although it works closely with the Government to resolve labor disputes through negotiation. Observers suggest that the Government likely would not tolerate the establishment of an alternative labor federation unless it believed it to be in its best interest.

By law civil servants and public sector workers, and some categories of farm workers, may not join unions. Only the General Assembly of the YCLU may dissolve unions.

There were no strikes during the year.

The YCLU is affiliated with the Confederation of Arab Trade Unions and the formerly Soviet-controlled World Federation of Trade Unions.

b. The Right to Organize and Bargain Collectively

The 1995 Labor Law provides workers with the right to organize and bargain collectively. The Government permits these activities; however, it seeks to influence them by placing its own personnel inside groups and organizations. All collective bargaining agreements must be deposited with and reviewed by the Ministry of Labor; such agreements exist. Unions may negotiate wage settlements for their members and can resort to strikes or other actions to achieve their demands.

The law protects employees from antiunion discrimination. Employers do not have the right to dismiss an employee for union activities. Employees may appeal cases of antiunion discrimination to the Ministry of Labor. Employees also may take a case to the labor courts, which often are disposed favorably toward workers, especially if the employer is a foreign company.

There are no export processing zones in operation; an EPZ is planned for Aden.

c. Prohibition of Forced or Compulsory Labor The Constitution prohibits forced or compulsory labor, and there were no reports of its practice. The law does not prohibit forced or bonded labor by children specifically, but such practices are not known to occur.

d. Status of Child Labor Practices and Minimum Age for Employment

Child labor is common, especially in rural areas. Many children are required to work in subsistence farming because of the poverty of their families. Even in urban areas, children work in stores and workshops, sell goods on the streets, and beg. The law does not prohibit forced or bonded labor by children specifically, but such practices are not known to occur (see Section 6.c.).

The established minimum age for employment is 15 in the private sector and 18 in the public sector. By special permit, children between the ages of 12 and 15 may work. The Government rarely enforces these provisions, especially in rural and remote areas. The Government also does not enforce laws regarding 9 years of compulsory education for children and many school-aged children work instead of attending school, particularly where schools are not available.

The results of the 1994 national census showed that 231,655 children between the ages of 10 and 14 years, or 6.5 percent of all children in that age group, were working. Experts believe that the number has increased since 1994.

After voting in support of the International Labor Organization's (ILO) basic agreement in May, the Consultative Council adopted the ILO's Child Labor Strategy to address persistent child labor problems. A special council, under the leadership of the Minister of Labor, uses the strategy as a government-wide guideline for enforcing existing child labor laws and formulating and implementing new laws.

The Ministry of Labor occasionally inspects factories in the major population areas. Ministry officials state that they lack the resources to enforce child labor laws more effectively. However, since a great percentage of the country's underage work force is in the agricultural sector in remote rural areas, it is difficult for the Government to protect most child workers.

e. Acceptable Conditions of Work

There is no established minimum wage for any type of employment. The Labor Law states that "it shall not be permissible that the minimal level of the wage of a worker should be less than the minimal wages of government civil servants." According to the Ministry of Labor, the average minimum wage of civil servants for 1994-95 was approximately \$50 to \$62 (yr 8,000 to 10,000) per month. Private sector workers, especially skilled technicians, do far better. The average wage does not provide a decent standard of living for a worker and family. A combination of inflation, the loss of government-provided subsidies, and a decline in the exchange value of the national currency continued to erode wages.

The law specifies a 40-hour workweek with a maximum 8-hour workday, but many workshops and stores operate 10 to 12-hour shifts without penalty. The workweek for government employees is 35 hours: 7 hours per day Saturday through Wednesday.

The Ministry of Labor has the responsibility for regulating workplace health and safety conditions. The requisite legislation for regulating occupational health is contained in the Labor Law, but enforcement is nonexistent. Many workers regularly are exposed to toxic industrial products and develop respiratory illnesses. Some foreign-owned companies implement higher health, safety, and environmental standards than the Government requires. Workers have the right to remove themselves from dangerous work situations and can challenge dismissals in court.

f. Trafficking in Persons

The law prohibits trafficking in persons, and there were no reports that persons were trafficked in, to, or from the country.

[end of document]

The Office of Website Management, Bureau of Public Affairs, manages this site as a portal for information from the U.S. State Department.

External links to other Internet sites should not be construed as an endorsement of the views or privacy policies contained therein.

Note: documents in Portable Document Format (PDF) require Adobe Acrobat Reader 5.0 or higher to view, [download Adobe Acrobat Reader \(http://get.adobe.com/reader/\)](http://get.adobe.com/reader/).